

From: Dawn Loader dawnloader@balfour.brighton-hove.sch.uk
Subject: Re: Response to your information request to the ICO: IC-43149-J5T9
Date: 6 July 2020 at 17:44
To: Charan Martin charan.martin@dataprotection.education
Cc: James England james.england@dataprotection.education, Lisa Collington lisacollington@balfour.brighton-hove.sch.uk

DL

Thank you Charan- your email clearly outlines the decision-making process related both to the father's PR rights, the competency assessment of LMW and the subsequent claim of emotional harm from her mother.

When I spoke to the Education Safeguarding Officer following LMW's mothers claims around the emotional wellbeing of LMW she suggested that the school or the mother make a referral to DFFs. LMW's mother spoke to the headteacher about this in March.

Many thanks,

Dawn Loader
Deputy Headteacher
Balfour Primary School
01273 507722

From: Charan Martin <charan.martin@dataprotection.education>
Sent: 06 July 2020 15:50
To: Dawn Loader <dawnloader@balfour.brighton-hove.sch.uk>
Cc: James England <james.england@dataprotection.education>; Lisa Collington <lisacollington@balfour.brighton-hove.sch.uk>
Subject: Re: Response to your information request to the ICO: IC-43149-J5T9

Hi Dawn,

Welfare is something that we discussed in March. Welfare concerns where they exist for a child should be considered and acted upon as a priority. This is because every school has a statutory duty to safeguard the welfare of the child. Put simply, schools have a duty to put the welfare of the child first. It is a duty to ensure that a child is not harmed or put at risk of harm by the actions or lack of actions of the school.

As far as GDPR is concerned if the child is not competent, as has been decided here, then the school have to make the decision about what to do in offering this app in circumstances where the parents cannot agree.

In terms of welfare the school must take a view upon whether, considering all the circumstances, reinstating the app will harm the child or put her at risk of harm? This is not something that your DPO can help you to assess. If, after assessing this issue, the answer is no then the school can choose to reinstate upon father with PR having given his consent for the data to be used. Conversely If the answer is yes, then the school has welfare concerns and should safeguard as in accordance with the school's safeguarding policy. If reinstating the app would cause harm or risk of harm in the view of the school then the school would be acting contrary to its statutory duty to safeguard the welfare of the child.

As I understand this matter the welfare of the child was considered and was a priority of the school when deciding both the issue of whether the child could make her own decisions in respect of her data and when making the decision to reinstate school PING. The school documented this process and the steps that they took in respect of considering both competence and welfare and came to the view that the child's welfare would not be harmed or put at risk of harm by the reinstatement of the app.

If this has changed for any reason and the school do consider that the child would suffer harm or be at risk of harm if the app is reinstated then the school need to safeguard as in accordance with their safeguarding policy and the app should not be reinstated on the basis that it puts the child at harm or at risk of harm if this is the conclusion that the school have come to.

The school need to balance the rights of the data subjects, (ie mothers and father in the case of a non competent child as they both have PR and are responsible for exercising the data protection of the child) as well as ensuring that they fulfil their statutory duty to safeguard the welfare of the child.

If the school have any concerns about the welfare of a child at any stage then the school should make a referral to social services as in accordance with the schools safeguarding policy.

If the school are still of the view that the app should be reinstated then the school should inform the mother and father of this because as data subjects have the right to be informed and the school have a duty to act fairly and with transparency. You should also inform the mother that she has the right to complain to the ICO and provide her with the address phone number and email of the ICO if she wishes to do so even though she has had these details before.

I will call Lisa on Wednesday on the number she has provided and we can consider matters further.

Charan Martin
LLB (Hons)
Barrister
DPE Consultant
charan.martin@dataprotection.education



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On 6 Jul 2020, at 15:47, Dawn Loader <dawnloader@balfour.brighton-hove.sch.uk> wrote:

Thank you James- now that is helpful!

Dawn Loader
Deputy Headteacher
Balfour Primary School
01273 507722

From: James England <james.england@dataprotection.education>
Sent: 06 July 2020 13:14
To: Dawn Loader <dawnloader@balfour.brighton-hove.sch.uk>
Cc: Lisa Collington <liscollington@balfour.brighton-hove.sch.uk>; Charan Martin <charan.martin@dataprotection.education>
Subject: Re: Response to your information request to the ICO: IC-43149-J5T9

Yes.

To be clear - nothing "trumps" GDPR and data protection. The exemptions and rules for the handling of such data are completely covered by the regulation and Data Protection Act.

Safeguarding concerns (which are covered under various fundamental freedoms in the EU Charter of Fundamental Rights, mainly Article 24 Rights of the Child) here are being weighed against various other fundamental freedoms and rights - the right to privacy, those freedoms around family life. This is being framed as a data protection issue, whereas it is much more than that, and I remain uncomfortable in our role as DPO having to arbitrate some of this - and also that you as a school have to. It's frustrating that the ICO only remain interested in insisting that data subjects rights should not be infringed when there is a delicate balancing act which results in a judgement that at some point outweighs another parties rights.

There has been a competency assessment and one parent throws safeguarding into the mix. We can't assess that, I don't know whether it's a real issue or a tactic, but any restriction of data for that reason results in an impediment of the rights of another individual. I would suggest that the safeguarding consideration needs careful and possibly external investigation. If it is such a concern the parent raises, at what point does this become a MASH referral. Again, not our remit.

There is always a balance to consider and in this case, it is complex. But just because something falls into a safeguarding concern doesn't mean that the severity of that safeguarding risk outweighs any competing rights of other individuals. But they might.

All we can do as DPO is try and ensure that all data rights are considered and that any exemption or external factor affecting those rights is given due consideration.

Unfortunately, you as a school are being asked to make the decisions which should really be evaluated and decided in a court - which is the proper place for these balancing decisions to take place. I don't know the answer to this, but if this issue is deemed detrimental to the child, at what point do the LA step in and seek a judicial review behalf of the child if the parents can't decide? At some point, the correct authority has to make a decision.

The ICO is not helping, but as far as what the IOC were surprised about or not, it depends on how the story is told to someone on the phone. That person may not have had the benefit of the documentation that Charan has supplied them with, nor is it likely that an independent view of any safeguarding concerns were presented by the particular individual.

All the ICO has said, is that they don't have any further advice.

James England
Director
LL.M.
CIPP/E CIPM
IBITGQ GDPR Practitioner

james.england@dataprotection.education
07803 900729



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On Mon, 6 Jul 2020 at 13:43, Dawn Loader <dawnloader@balfour.brighton-hove.sch.uk> wrote:

So essentially they haven't told us anything other than there is currently no complaint filed against the school.

This is unhelpful as mum reported to us that the ICO had indicated that safeguarding/wellbeing concerns trumped information sharing and that they were 'surprised' that the school were going to reinstate dad's access to SchoolPing.

Mum has asked not be contacted on this matter until she decides to send LMW back to school.

Dawn Loader
Deputy Headteacher
Balfour Primary School
01273 507722

From: James England <james.england@dataprotection.education>
Sent: 06 July 2020 08:25
To: Lisa Collington <lisacollington@balfour.brighton-hove.sch.uk>
Cc: Charan Martin <charan.martin@dataprotection.education>; Dawn Loader <dawnloader@balfour.brighton-hove.sch.uk>
Subject: Re: Response to your information request to the ICO: IC-43149-J5T9

Even if there was (and who's to say there won't be in the future), they are staying neutral on outcomes unless they feel enforcement is necessary...and their earlier letter is a type of enforcement.

So we have to be sure of being able to support any future complaint through the demonstration of balancing of conflicting rights and fair assessment competence.

At the end of the day, they aren't issuing further advice, which as you say Lisa, is a good thing.

James

James England
LLM CIPP/E CIPM
Director
Data Protection Education
07803 900729

On Mon, 6 Jul 2020, 09:20 Lisa Collington, <lisacollington@balfour.brighton-hove.sch.uk> wrote:

At least they say that no case has been opened against the school. That gives me reassurance. Look forward to hearing from you Wednesday.

Kind regards,

Lisa Collington

School Business Manager

.....
Balfour Primary School, Balfour Road, Brighton, BN1 6NE
p: 01273 507722 w: www.balfourprimary.co.uk

From: James England <james.england@dataprotection.education>
Sent: 06 July 2020 09:10
To: Charan Martin <charan.martin@dataprotection.education>
Cc: Lisa Collington <lisacollington@balfour.brighton-hove.sch.uk>; Dawn Loader <dawnloader@balfour.brighton-hove.sch.uk>
Subject: Re: Response to your information request to the ICO: IC-43149-J5T9

As usual, the ICO provides very little practical guidance and support, but quite happy to give you enough rope to hang yourself.

It's reported that they have issued guidance specific to the school but won't share it. I expect that some generic guidance was given by their lowest tier support over the phone without any reference to existing casework numbers.

Let's discuss on Wednesday. At this point, there is little more to do than document how data rights have been supported, the decision made and actions to support that decision...the ICO isn't going to give any direction on how to balance the conflicting rights.

James

James England
LLM CIPP/E CIPM
Director
Data Protection Education
07803 900729

On Mon, 6 Jul 2020, 08:42 Charan Martin, <charan.martin@dataprotection.education> wrote:

Dear both,

See the response from the ICO received late on Friday evening.

Shall we have a chat on Wednesday morning when I'm next in the office?

Kind regards,

Charan Martin
LLB (Hons)
Barrister
DPE Consultant
charan.martin@dataprotection.education
[07970732064](tel:07970732064)

null

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Begin forwarded message:

From: ICO Casework <icocasework@ico.org.uk>
Date: 3 July 2020 at 17:26:03 BST
To: Charan Martin <charan.martin@dataprotection.education>
Subject: Response to your information request to the ICO: IC-43149-J5T9

3 July 2020

Case Reference: IC-43149-J5T9

Dear Charan Martin
Further to your information request to the Information Commissioner's Office of 10 June 2020, please find our response attached.
Yours sincerely
Antonia Swann
Lead Information Access Officer
Information Commissioner's Office

Information Commissioner's Office, Wycliffe House, Water Lane, Wilmslow, Cheshire SK9 5AF
T. 0330 414 6894 ico.org.uk twitter.com/iconews
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